

ORDER SHEET
IN THE LAHORE HIGH COURT,
BAHAWALPUR BENCH, BAHAWALPUR.
JUDICIAL DEPARTMENT

Crl. Misc. No.1789-B of 2021

Muhammad Asif alias Jam Kala

Vs.

The State and another.

S.No. of order/ proceeding	Date of order/ proceeding.	Order with signatures of Judge, and that of parties or counsel, where necessary.
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10.06.2021 Mr. Ghazanfer Ali Khan, Advocate with the petitioner.

Mr. Javed Iqbal Bhaaya, Assistant District Public Prosecutor with Aman Ullah, ASI.

Dr. Abid Jamil, the complainant/respondent No.2 in person.

Through this petition filed under section 498 Cr.P.C. the petitioner namely Muhammad Asif alias Jam Kala, seeks pre-arrest bail in case FIR No. 191 of 2021 dated 12.05.2021, registered at Police Station Musafir Khana, District Bahawalpur, in respect of offences under sections 3(3) (a) (ii) and 3 (3) (b) of the Punjab Animals Slaughter Control Act, 1963, as amended by the Punjab Animals Slaughter Control (Amendment) Act, 2016.

2. The allegation against the petitioner, namely Muhammad Asif alias Jam Kala, culled from the evidentiary material produced before the Court, is that he had sold a dead cow to Muhammad Ajmal for the purposes of slaughter.

3. I have heard the learned counsel for the petitioner, the learned Assistant District Public Prosecutor and with their able assistance have perused the record.

4. This is a pre-arrest bail and only tentative assessment of the evidentiary material produced before the Court can be made at this stage. A perusal of the FIR

reveals that the petitioner was not alleged to be present at the premises which Doctor Abid Jamil, the complainant of the case, had raided and where he took the dead cow into his possession. Furthermore, it had been mentioned in the FIR that the petitioner had sold the said dead cow to Muhammad Ajmal, the co-accused of the petitioner, for the purposes of selling the meat, however, no document has been collected to prove the factum of sale and no statement of any witness has been recorded who would have stated that the sale of a dead cow had taken place in his presence. Furthermore, Doctor Abid Jamil, the complainant of the case, present before the Court, states that when he raided the premises and took the dead animal into his possession, the same had not been de-skinned. The provisions of the Punjab Animals Slaughter Control Act, 1963, as amended by the Punjab Animals Slaughter Control (Amendment) Act, 2016 are very specific. According to section 2(b) of the *ibid* Act, “carcass” has been defined as under:-

(b) “carcass” means a de-skinned body of an animal and includes a part of a de-skinned body of an animal. ”

Moreover, the offence made punishable under section 3 of the Punjab Animals Slaughter Control Act, 1963, as amended by the Punjab Animals Slaughter Control (Amendment) Act, 2016 provides as under:

“3. Restriction on slaughter of animals.- (1) A person shall not slaughter a useful animal.

(2) An animal shall not be slaughtered:

(a) except in accordance with this Act and in a slaughter-house;

(b) unless the animal is approved for slaughter in accordance with the Act; or

(c) on Tuesday and Wednesday or on such other day or days as the Government may, by notification in the official Gazette, specify.

(3) A person shall not:

(a) sell, keep, store, transport, supply, offer or expose for sale, or hawk any meat or carcass of a:

(i) *haram animal or of an animal which died of, or has suffered from contagious diseases or has been poisoned to death, or died because of gunshot wound or electrocution;*

(ii) meat or carcass of any animal which has been slaughtered in contravention of this Act or does not bear the stamp, mark, tag or certification of the slaughter-house specified by the concerned local authority; or

(b) sell or cause to be sold any meat at a place other than that set apart or approved for this purpose by the concerned local authority.

(4) *Nothing contained in this section shall apply to the slaughter of an animal by a Muslim on the day of Eid-ul-Azha and the two succeeding days of Eid-ul-Azha or any other religious ceremony.*

A perusal of the said provisions of the law would clearly reveal that what has been made punishable under section 3 of the Punjab Animals Slaughter Control Act, 1963, as amended by the Punjab Animals Slaughter Control (Amendment) Act, 2016, is the act of selling, keeping, storing, transporting, supplying, offering or exposing for sale or hawking **any meat or carcass of an animal** which had been slaughtered in contravention of the Act or does not bear the stamp, mark, tag or certification of the slaughter-house specified by the concerned local authority. In the present case, there is no allegation against the petitioner that he was selling, keeping, storing, transporting, supplying, offering or exposing for sale or hawking any meat or carcass of an animal. As mentioned above, the term carcass has been defied as a **de-skinned body of an animal**. The complainant, present before the Court, has admitted that at the time of raid, the dead cow had not been de-skinned. Furthermore, Dr. Abid Jamil, the complainant of the case, submits that the meat of the dead cow had not been offered for sale rather the whole dead animal had been sold. In this manner, the liability of the petitioner under sections 3(3)(a)(ii) and 3(3)(b) of the Punjab Animals Slaughter

Control Act, 1963, as amended by the Punjab Animals Slaughter Control (Amendment) Act, 2016, shall be better determined by the learned trial court and presently, *prima facie*, the act of the petitioner is not covered within the mischief made punishable under the above mentioned sections. The case of the petitioner namely Muhammad Asif alias Jam Kala, is quite distinct from Muhammad Ajmal, the co-accused of the petitioner, who is alleged to be a butcher and had purchased the dead cow for the purposes of selling the meat. The Investigating Officer of the case further submits that *nothing is to be recovered from the possession of the petitioner*. In view of the facts mentioned above, the assertion of the learned counsel for the petitioner that the petitioner has been falsely involved in this case with *malafide* and malicious intent, is an assertion which cannot be said to be without substance or foundation at this stage. The versions of the petitioner as well as the complainant have already been verified by the Investigating Officer, during the investigation of the case. In view of the peculiar circumstances of the case, sending the petitioner behind the bars at this stage would cause irreparable loss to his reputation and would serve no useful purpose. Reliance is placed on the case of “Khalil Ahmad Soomro and others v. The State” (PLD 2017 SC 730) wherein the following principle has been enunciated:-

“Although for grant of pre-arrest bail one of the pre conditions is that the accused person has to show that his arrest is intended by the prosecution out of mala fide and for ulterior consideration. At pre-arrest bail stage, it is difficult to prove the element of mala fide by the accused through positive/solid evidence/ materials and the same is to be deduced and inferred from the facts and circumstances of the case and if some events-hints to that effect are available, the same would validly constitute the element of mala fide.”

5. In view of the above discussion, this petition is **allowed** and ad-interim pre-arrest bail already granted to the petitioner, by this Court, vide order dated 03.06.2021, is confirmed subject to his furnishing fresh bail bonds in the sum of Rs.200,000/- (Rupees two hundred thousand only) with two sureties each, in the like amount, to the satisfaction of learned trial court.

6. Needless to mention that any observations as contained in the above order are tentative in nature and shall not influence the trial court.

(SADIQ MAHMUD KHURRAM)
JUDGE

Rashid

Approved for Reporting.

Judge